Cover Sheet	
Assignor/Seller: _____ _____ _____ _____ Attention:_____ Contact Numbers: Bank: _____ Account No._____ ABA/Routing Number:_____	Assignee/Buyer: **Syndicated Patent Acquisitions Corp. ("SynPat")** 706 Cowper St. Suite 200 Palo Alto, CA 94301 Attention: CEO Contact Numbers: 1-415-902-5901 Bank: _____ Account No._____ ABA/Routing Number:_____
Assignor __retains / __ does not retain a license back under the Patents.	
Diligence Period (100 days) ends on:	_____
Number of U.S. assets:	__ Patents + __ Patent Applications
Purchase Price ("PP"):	$_____
Royalty Payments ("RP"):	1/3 of all SynPat Revenues generated from monetization from the Patents

The Total Price for the Patents ("TP") is the sum of: (a) the Purchase Price (PP), and (b) the Royalty Payments (RP).

Calculation of Assignor's expected Total Price:

Assuming all Participants/Licensees are of the same size (have the same Annual Revenue ("AR")).
Participants' Aggregate Annual Revenues ("AAR")
License Fee in Stage 1 (within first 4 months from acquisition) = 1.5*AR*PP/AAR
License Fee in Stage 2 (after first 4 months from acquisition) = 3*AR*PP/AAR
License Fee in Stage 3 (during enforcement, until Markman ruling) = 9*AR*PP/AAR

n = Number of Participants
N1, N2, N3 = Number of Licensees in stage 1, 2 and 3

$$TP = PP + \frac{1}{3} * \left[1.5 * N1 * PP * \frac{AR}{AAR} + 3 * N2 * PP * \frac{AR}{AAR} + 9 * N3 * PP * \frac{AR}{AAR}\right] = PP\left(1 + \frac{\frac{N_1}{2} + N_2 + 3\,N_3}{n}\right)$$

This agreement (the "Agreement") consists of this Cover Sheet, together with the attached SynPat Program Overview, Syndication Flowchart, Terms & Conditions and Exhibits A-D, and is effective as of the date of last signature by the parties (the "Effective Date"). A party's signature bellow acknowledges that the respective party has read and understood the Agreement and agrees to be bound by its terms and conditions.

Assignor	**Syndicated Patent Acquisitions Corp. ("SynPat")**
By:_____	By:_____
Name:_____	Name:_____
Title:_____	Title:_____
Date:_____	Date:_____

SynPat Program Overview

SynPat acquires patent portfolios at prices set by patent sellers. SynPat's unique acquisition program enables patent owners to maximize return on their non-core patents, while ensuring that the patents are monetized on fair, reasonable and non-discriminatory terms.

Syndicated Acquisition: For each acquisition, SynPat introduces the portfolio to operating companies that might have an interest in obtaining a license under the specific patents, and organizes an *ad hoc* syndicate of interested operating companies that collectively fund the seller's asking price. To minimize the license fee for each participating company, the purchase price, without any mark-up, commission or other transaction fees, is objectively divided among the participants, based on their publicly reported revenue, regardless of actual infringement.

Post-Syndication Licensing: After SynPat acquires the patents, it continues to offer licenses to companies that did not participate in the ad-hoc acquisition. During the first four months, licenses are available at a modest 1.5x premium above the price paid by the syndicate participants. Thereafter, the premium rises to 3x.

Seller's Return: Patent sellers not only get their asking cash price immediately upon assignment, but also receive a one-third (1/3) share of SynPat's revenues generated from subsequent licensing for the life of the patents.

Participants' Return: Companies participating in an acquisition not only get a license at a minimum price, but also receive a one-third (1/3) share of SynPat's revenues from subsequent licensing of the acquired patents.

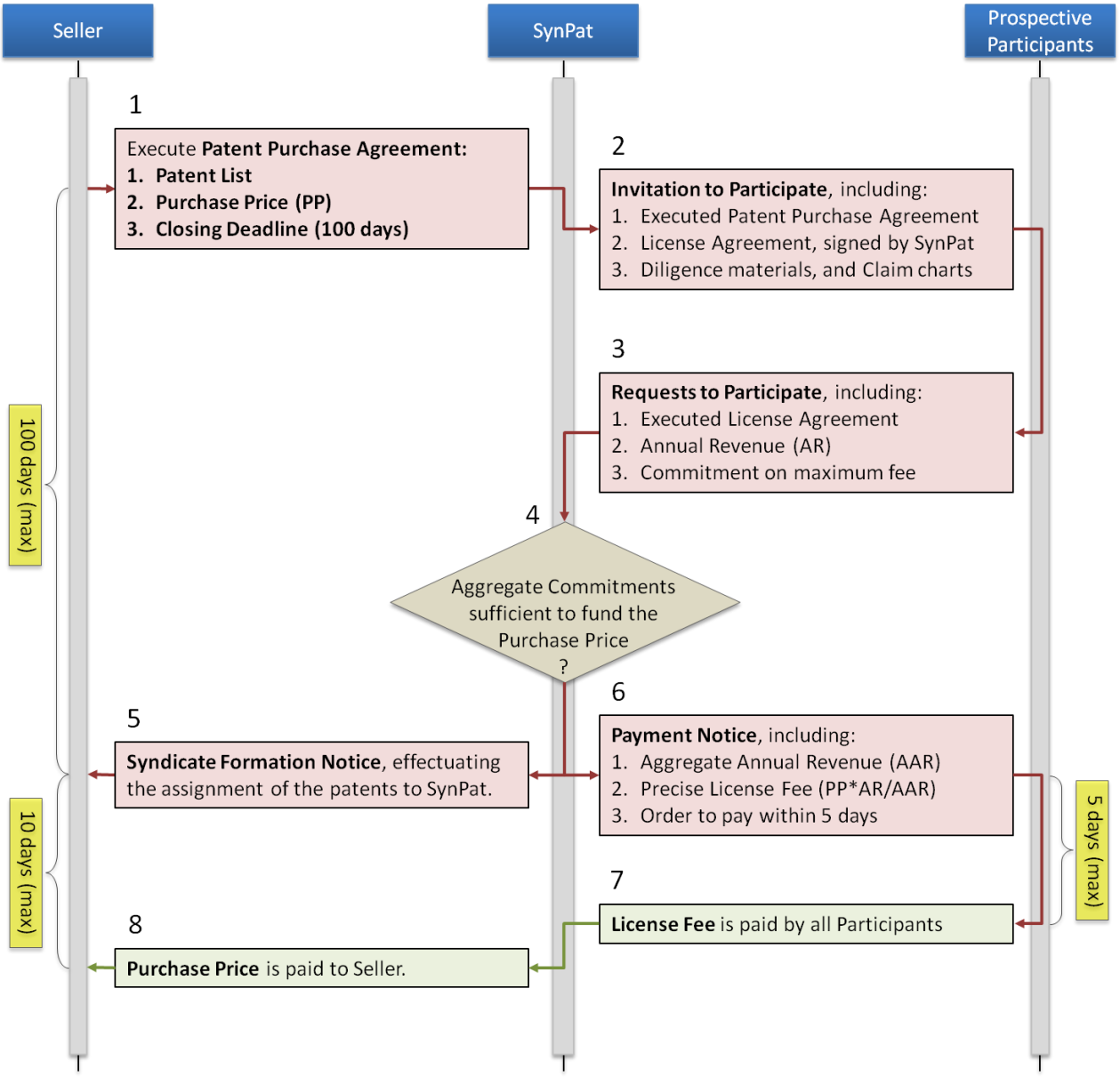
Good Faith Disputes: Unlike other licensors, SynPat allows prospective licensees to submit, in confidence, arguments regarding invalidity or non-infringement to FedArb (42 former Federal judges and 25 designated IP specialists). FedArb's decision is only binding on SynPat. SynPat will terminate its licensing efforts vis-à-vis the challenger if FedArb finds that arguments have merit.

Free riders and willful infringers: Against committed free riders and willful infringers (i.e., unlicensed companies that are presented with clear and unchallenged evidence of use) the patents are enforced, but only as a last resort. SynPat assigns the patents to an enforcement firm on 50% contingency. However, until Markman ruling, licenses are still available, at a 9x premium.

Full Transparency: Since participation in each *ad-hoc* syndicate is open and available to all, and since licenses are available at any stage of the program, it is up to each prospective licensee to decide when to counter-execute SynPat's standard license agreement and thereby acquire a license under the specific patents.

Syndication Process

Upon signing a Patent Purchase Agreement with a patent seller (illustrated as phase 1 below), SynPat extends executed offers to license the patents (2). Companies that wish to participate in the syndicate must send SynPat a **Request to Participate**, stating the maximum license fee they commit to pay (3). Upon receipt of Requests to Participate with aggregate commitments sufficient to pay the seller's asking price (4), SynPat notifies Seller of the syndicate formation, which effectuates the assignment of the patents to SynPat (5), and sends to all requesters a **Payment Notice** stating the exact License Fee specifically calculated for each Participant (= the Purchase Price times the ratio between a participant's average annual revenue and the aggregate average annual revenues of all other participants (6). Participants then execute the License Agreement, and pay their License Fee within five days (7). SynPat transfers the entire amount collected from all the Participants to Patent Seller (8).



Syndication Legal Structure

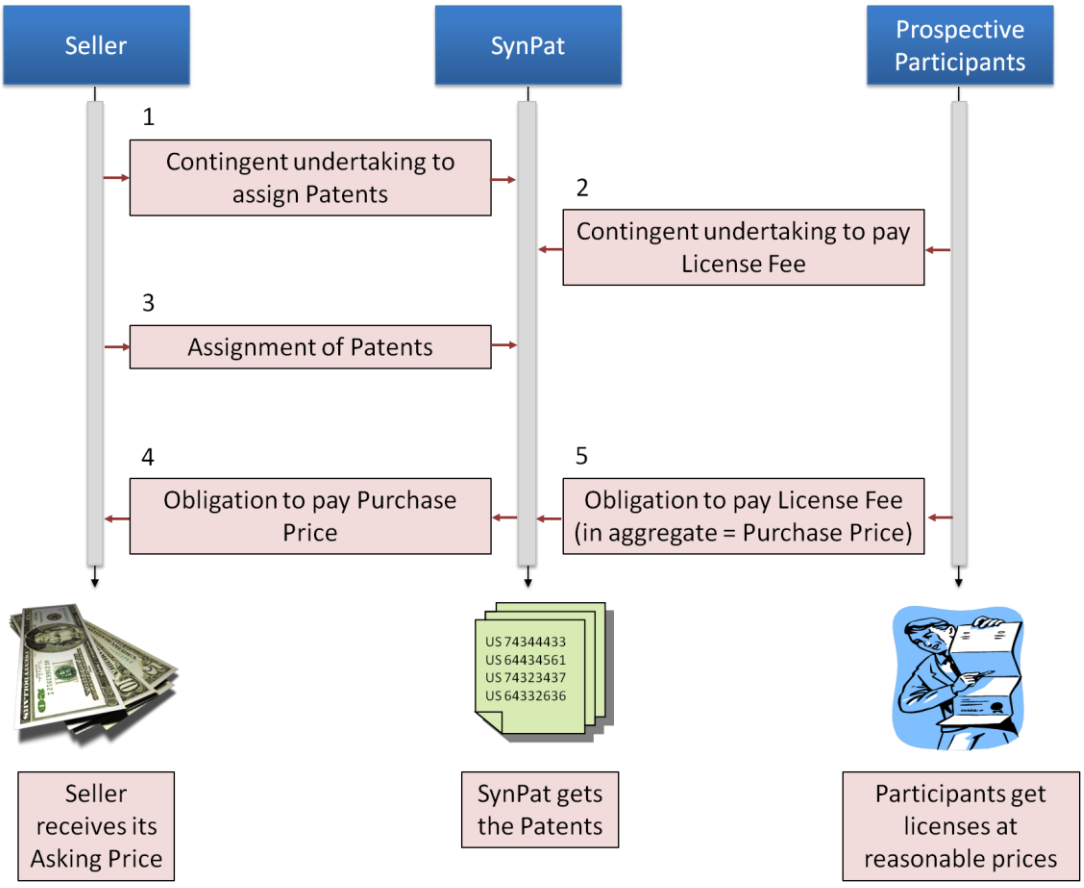
The syndication process, ending with Patent Seller receiving its asking price, Participants receiving non-exclusive licenses under the patents, and SynPat owning the patents, secures the interests of all parties via the following set of legal actions:

The **Patent Purchase Agreement** between Patent Seller and SynPat assigns the patents to SynPat upon receipt of binding commitments from prospective Participants sufficient to fund the Purchase Price.

The **Patent License Agreement**, executed by SynPat as licensor, and sent to prospective Participants while the patents are still owned by the Seller, becomes effective upon the assignment of the patents to SynPat.

Seller's undertaking (step 1 in the chart below) provides prospective Participants with the confidence to execute a **Request to Participate** in which they commit to pay their share in the Purchase Price upon the assignment of the patents to SynPat (step 2).

The Closing occurs when SynPat (upon receiving aggregate commitments from prospective Participants sufficient to fund the Purchase Price) transmits to Seller a notice that the syndicate has been formed. Sending the notice to Seller triggers the following legal results simultaneously: the Patents are assigned to SynPat (step 3), SynPat is obligated to pay the Purchase Price to Seller (step 4), and Participants are obligated to pay their license fees to SynPat (step 5).



Terms & Conditions

1. **Definitions.**

1.1. **Patents** means the patents and patent applications listed in **Exhibit A** together with any and all patents and patent applications that claim priority to, or are based on, any patent application that resulted in any of the patents and patent applications listed in Exhibit A.

1.2. **SynPat Program** means the patent acquisition and licensing program set forth in the preceding Overview**.**

1.3. **Diligence Period** is as set forth in the Cover Sheet.

1.4. **SynPat Revenues** means any amount actually received by SynPat, its Affiliates, or on behalf of SynPat or its Affiliates, from the licensing, enforcement or sale of the Patents, minus adjustments, if any, made under section 6.2.

1.5. **Purchase Price** is as set forth in the Cover Sheet.

1.6. **Royalty Payments** means an amount equal to one-third (1/3) of SynPat's Revenues from licensing or other monetization of the Patents.

1.7. **Participant** means a company that chooses to acquire a license under the Patents at a price equal to that company's AR multiplied by the ratio between the Purchase Price and the AAR.

1.8. **Syndicate** means a group of Participants organized by SynPat during the Due Diligence Period to fund SynPat's acquisition of the Patents.

1.9. **Request to Participate** means a form provided by SynPat to each of the operating companies invited to join the syndicate, which, if filled in properly and submitted to SynPat, constitutes an undertaking by a prospective Participant, if the syndicate is formed, to be bound by the terms of the License Agreement, and to pay to SynPat a license fee, up to a certain designated maximum, which, together with the license fees paid by all other Participants, will fund the Purchase Price.

1.10. **"Annual Revenue"** or **"AR"** means the average of a company's annual revenues for the three (3) most recently reported fiscal years as appeared from filing with the Securities and Exchange Commission, or with the analogous foreign regulatory authority or from other reports complying with GAAP.

1.11. **"Aggregate Annual Revenues"** (or **"AAR"**) means the sum of the AARs of all Participants.

Other terms designated in bold are defined below as introduced.

2. **Due Diligence.** Upon execution of this Agreement, SynPat will initiate a due diligence investigation of the Patents. If SynPat determines that the Patents are suitable for the SynPat Program, it will solicit interest among operating companies to become Participants in a Syndicate to be formed within the Diligence Period.

3. **Syndication.** Upon receiving from prospective Participants executed **Requests to Participate** with payment commitments sufficient to fund the Purchase Price, then within five (5) days, SynPat shall: (1) close the syndicate to any further participation; (2) calculate the AAR and the license fee to be paid by each Participant (PP*AR/AAR); and (3) transmit to each Participants a written notice that the syndicate has been formed, reaffirming the

validity of the granted licenses and requesting the transfer of the license fee to SynPat within five (5) days (**"Payment Notice"**).

4. **Closing.** In parallel with sending the Requests for Payments to the Participants pursuant to Section 3 above, SynPat shall transmit to Assignor a written notice that the syndicate has been formed (**"Syndicate Formation Notice", see Exhibit D**) which, shall effectuate the assignment of the Patents to SynPat. The Parties acknowledge that sending the Syndicate Formation Notice to Assignor and the Request for Payment to the Participants creates the following legal result: (1) the Patents are assigned to SynPat, pursuant to Section 5 below; (2) SynPat is obligated to pay the Purchase Price to Assignor within ten (10) days, pursuant to Section 6.1 below; and (3) the Participants are obligated to pay their license fees, which, in the aggregate, equal the Purchase Price, to SynPat within five (5) days, pursuant to Section 3 above. In the event that SynPat does not transmit a Syndicate Formation Notice to Assignor prior to the expiration of the Diligence Period, this Agreement shall automatically terminate and SynPat shall have no payment obligations or liability to Assignor.

5. **Assignment**. Subject to receipt from SynPat of a Syndicate Formation Notice under Section 3 above, Assignor hereby conveys, assigns, and transfers to SynPat all right, title, and interest in and to the Patents, including (i) the right to prosecute the Patents to issuance; (ii) the right to sue and recover damages for past, present, and/or future infringement, including the right to collect and receive any damages, royalties, or settlements for such infringements; (iii) the right to injunctive relief; and (iv) any and all causes of action relating to any of the inventions or discoveries described in the Patents. For the avoidance of doubt, this is not a promise to assign the patents in the future, but rather a present assignment that shall be in full force and effect upon Assignor's receipt of the Syndicate Formation Notice. The execution of no additional document or agreement (including the Confirmatory Patent Assignment Form in Exhibit E) is required in order to effectuate the assignment, as that shall occur automatically upon Assignor's receipt of the Syndicate Formation Notice.

6. Consideration

6.1. In consideration of the rights and benefits granted to SynPat in this Agreement by Assignor, including, but not limited to, the assignment of the Patents, Assignor shall be entitled to receive the Purchase Price and the Royalty Payments. The Purchase Price shall be payable by SynPat no later than ten (10) business days after Assignor's receipt of a Syndication Formation Notice; and the Royalty Payments shall be due and payable within thirty (30) calendar days after the end of each calendar quarter in which SynPat's Revenues are received.

6.2. In the event of a shortfall smaller than a third (1/3) of the Purchase Price, i.e. the total amount committed by prospective Participants is smaller by no more than thirty three percent (33%) than Purchase Price, SynPat shall be allowed to raise the shortfall amount from investors within or outside the Syndicate Participants. The contribution made by investors ("Principal") shall be repaid from SynPat Revenues, and the remaining amount shall be the new SynPat Revenue for calculation and payment of the Royalty Payments.

6.3. **Records.** SynPat shall keep complete and proper records for SynPat's Revenue, and Assignor shall have the right to audit the correctness of such records once per calendar year by an independent public accountant, at Assignor's expense. Assignor and its representatives shall not disclose any information from the records and shall not use such information for any other purpose without prior written authorization from SynPat.

6.4. **Taxes.** SynPat shall be entitled to deduct and set off any taxes that are required to be withheld by virtue of any payment to the Assignor and shall be allowed to pay them to the appropriate taxing authority.

7. Grant Back License

7.1. **Grant.** Subject to the terms and conditions of this Agreement, SynPat hereby grants to Assignor a worldwide, fully paid-up and irrevocable non-exclusive, non-sub-licensable, and non-transferable (subject to Section 7.2), license under the Patents, in any and all fields of use, to make, have made, use, import, offer to sell, sell, and distribute its products or services, until the expiration of the last of the Patents to expire.

7.2. **Transferability.** Assignor may assign the license granted in Section 7.1to a buyer of all or substantially all of its operating assets or outstanding stock or to a buyer of that part of Assignor's business that exercises all rights granted under this license. Notwithstanding the foregoing, Assignor may not assign this license to any third party who is a declaratory judgment plaintiff or an infringement defendant with respect to any of the Patents, or a party infringing any claim from any of the Patents, or a party with which SynPat has initiated licensing communications or its affiliate. Assignor shall give SynPat written notice of the assignment within 30 days from the date of the assignment, which shall include the assignee's contact information and its written explicit consent to be bound by such license. Any other attempt to assign, grant or otherwise convey such a license or any part thereof by Assignor shall be null and void *ab initio*.

7.3. **Changes to or Modifications of Software.** In the event the Patents cover software, SynPat grants to all third parties a perpetual, irrevocable, non-exclusive, non-transferable, non-sub-licensable, fully paid-up, worldwide license under the Patents to use, sell, offer for sale, import, and distribute any changes to or modifications of software that they received from Assignor or its Affiliates.

7.4. **No other Rights.** Other than as set forth in Section 7.1, no other rights or licenses under the Patents are granted.

8. **Post-Syndication Licensing.** Immediately after acquisition of the Patents, SynPat shall focus its efforts on offering licenses to companies that decided not to participate in the acquisition Syndicate. During the first four months from the assignment, licenses are available at a modest 1.5x premium above the price paid by participants. Thereafter, the premium rises to 3x above the participants' price. Prospective licensees shall be able to challenge the validity and/or infringement of the subject patents by submitting materials and arguments in confidence to FedArb and FedArb's decision shall be binding only on SynPat. SynPat shall stop its efforts to license a prospective licensee if FedArb finds that the prospective licensee's arguments have merit.

9. For the avoidance of doubt, Assignor's entitlement to the Royalty Payments, shall not be construed as retaining any other rights in connection with the Patents, including but not limited to, their reassignment, monetization or abandonment.

10. Cooperation.

10.1. **Cooperation between the Parties.** The Parties agree to fully cooperate with one another in any matter concerning the prosecution, licensing, enforcement, defense of the Patents, or transfer rights therein, and each party shall provide to the other party all

documents that are reasonably required to comply with the terms of this Agreement, including executing the Confirmatory Patent Assignment Form set forth in **Exhibit E**.

10.2. **Assignor's Good Faith Performance.** In consideration of SynPat's due diligence investigation of the Patents and efforts to organize an acquisition Syndicate, and in light of the fact that SynPat charges no commission or adds no markup to the Purchase Price, upon acquisition of the Patents, Assignor agrees that if during the Due Diligence Period any maintenance fees or actions relating to the prosecution of the Patents become due, including but not limited to any reissues or reexaminations, Assignor shall timely pay such fees or perform such actions.

11. **Assignor's Reserved Rights.** SynPat acknowledges and agrees that its rights, title and interest in and to the Patents are subject to any patent license agreements, patent settlement agreements or other agreements relating to the Patents entered into prior to the Effective Date by Assignor or a predecessor in interest. Assignor reserves a right and license under the Patents (together with all reissues, reexamination, extensions, divisions, continuations, continuations in part and foreign counterparts that claim priority to any of the Patents, whether filed or prosecuted by SynPat or any successor-in-interest thereto) to the extent, if any, necessary to effectuate its obligations as licensor under any such prior agreements. SynPat shall expressly make all rights granted and all assignments executed by SynPat with respect to the Patents subject to any such prior agreements. Assignor reserves no other rights with regard to the Patents, including the right to receive and retain royalties or other payments under such licenses.

12. **SynPat's Reserved Rights.** Notwithstanding the foregoing, if SynPat determines, in its reasonable and sole discretion, that pursuing licensing or enforcement of any of the Patents would be commercially unreasonable or unlawful or illegal, it may at any time elect not to pursue such licensing or enforcement or to continue prosecution or maintenance of such Patents.

13. **Power of Attorney.** If SynPat is unable for any reason to obtain a signature of Assignor on any document necessary to perfect the conveyance, assignment, or transfer of any Patents, Assignor, upon receipt of the Purchase Price, irrevocably designates and appoints SynPat and its duly authorized officers and agents as Assignor's agent and attorney in fact, which appointment is coupled with an interest, to act for and on behalf of Assignor to execute, verify, and file any documents and to perform all other lawfully permitted acts to further the purpose of this Agreement with the same legal force and effect as if executed or performed by Assignor.

14. **Representations and Warranties.**

14.1. Assignor represents and warrants to SynPat that as of the Effective Date:

14.1.1. **Authority.** Assignor has the right and authority to enter into this Agreement and to carry out its obligations hereunder.

14.1.2. **Title.** Assignor has good and marketable title to the Patents, free and clear of any liens, security interest or other encumbrances, except as set forth on Exhibit X attached hereto, and has sole title to the Patents and that no material impairments exist on its ownership of such Patents.

14.1.3. **Fees.** All maintenance fees, annuities, and the like due on the Patents on or before the Effective Date have been paid.

14.1.4. **Existing Agreements.** Except for the Existing Agreements set forth in **Exhibit B**, the Patents are (i) not the product or subject of any joint development activity or agreement with any third party; (ii) not the subject of any consortia agreement, including without limitation, any standards setting organization or association; (iii) not the subject of any cross-license; and (iv) have not been financed in whole or in part by any third party.

14.1.5. **Preservation of Status Quo.** Assignor agrees not to assign or to pledge the Patents to a third party during the Diligence Period.

14.1.6. **Prior Actions.** Except for the Prior Actions set forth in **Exhibit C** attached hereto, during the time that the Patents are owned by Assignor, the Patents are not currently, and have not been previously, subject to any action or proceeding concerning their validity, enforceability, inventorship or ownership; and Assignor has no knowledge of any facts that could give rise to a claim that the Patents are invalid or unenforceable; and Assignor has not engaged in any conduct, or omitted to perform any necessary act, the result of which would invalidate the Patents or preclude their enforceability.

14.1.7. **Encumbrances.** To the best of Assignor's knowledge, the encumbrances listed in **Exhibits B and C** are the only encumbrances or licenses for the Patents incurred or granted by Assignor or by a third party Assignor from which Assignor acquired the Patents, and except for such encumbrances, there has been no assignment, license, cross-license, transfer, lien, security interest, conveyance, other transfer of any right, title, claims, interest or privileges with respect to the Patents to any third party; and the Patents are not subject to a covenant not to sue. With respect to Patents that Assignor purchased from a third party, Assignor makes no representation or warranty that there are no other encumbrances or licenses of which Assignor is unaware.

14.1.8. **Related Patents.** To the best of Assignor's knowledge, except for the Patents, there are no patents or patent applications that claim priority to, or issued from any patent application that resulted in any of the Patents, and if any such patents or patent applications are omitted, the Parties agree to their automatic inclusion in the Patents.

14.2. SynPat represents and warrants to Assignor that of the Effective Date:

14.2.1. **Authority.** SynPat is a corporation duly organized and in good standing under the laws of Delaware; it has the right and authority to enter into this Agreement and to carry out its obligations hereunder; and the person executing this Agreement on behalf of SynPat is duly authorized to do so.

14.2.2. No Grants Prior to Close. SynPat acknowledges and agrees that it has no authority or ability to grant any rights, licenses or covenants under the Patents to anyone prior to the date the Patents are assigned to SynPat under Section 2, and no rights, licenses or covenants shall be granted to anyone, including existing licensees or investors of SynPat or its affiliates, prior to that date.

15. **Confidentiality.** Each party agrees not to disclose the terms of this Agreement or the negotiations leading thereto to any third party without the prior written consent of the other, except: (a) when such disclosure is reasonably required by government or court order or otherwise required by law or any applicable securities exchange rules or regulations, or to enforce rights under this Agreement; (b) to provide prospective Participants, Licensees or assignees with evidence of SynPat's rights under this Agreement, including without limitation a copy of this Agreement; (c) to enforce or defend the Patents; (d) in confidence, to accountants, banks, and financing sources their advisors and others who are reasonably believed have a need to know in support of the conduct of each party's business; (e) in confidence, in connection with a merger or acquisition or proposed merger or acquisition, or the like. Each party has the right to issue a press release on this Agreement so long as it provides a courtesy copy of the press release to the other prior to release.

16. **Miscellaneous.**

16.1. **Fair Construction.** This Agreement shall be construed fairly, according to its terms, without constructive presumptions against the drafting Party and without using the paragraph headings.

16.2. **Governing Law, Venue and Jurisdiction.** This Agreement shall be governed in accordance with U.S. federal law and/or the laws of the State of California, if applicable, without reference to its choice of law principles to the contrary. The state and federal courts having jurisdiction over San Francisco, California, United States of America provide the exclusive forum for any court action between the parties relating to this Agreement. The prevailing party in any legal action concerning this Agreement shall be entitled to recover its legal expenses.

16.3. **Notices.** Any notice under this Agreement shall be in writing, and delivered to the address on the Cover Sheet, either personally or via Fed-Ex or UPS**.**

16.4. **Waiver.** No term of, or right under, this Agreement shall be construed as waived unless was done by the written consent of the party waiving compliance.

16.5. **Independent Contractors.** The Parties are not partners, joint venturers, or agents of one another, and neither Party assumes the liability of the other, or empowered to bind the other.

16.6. **Severability.** If any term of this Agreement is unenforceable, it shall be interpreted as to fulfill its original objective. The validity of any other term shall not be affected.

16.7. **Assignment.** This Agreement may be assigned without obtaining the consent or approval of any person, provided that the assignee notifies the non-assigning party of its consent to be bound by this Agreement, and further provided that the assignee or its affiliate is not a declaratory judgment plaintiff or an infringement defendant with respect to any of the Patents, or a party infringing any claim from any of the Patents, or a party with which licensing communications have been initiated.

16.8. **Counterparts.** This Agreement may be executed in counterparts, all of which taken together shall constitute a single instrument binding upon the parties.

16.9. **Entire Agreement.** This Agreement, which consist of the Cover Sheet, the General Terms and Conditions, and the attached Exhibits, sets forth the entire

understanding and agreements of the parties relating to the subject matter thereof and supersede all written or oral prior agreements and understandings between the parties relating to the subject matter thereof.

Exhibit A

Patents (Section 01.1)

U.S. Patents and Applications

Patent No.	Appl. No.	Filing Date	Title

* Expired or abandoned

Non-U.S. Patents and Applications

Patent No.	Appl. No.	Filing Date	Country	Title

Exhibit B

Existing Agreements (Section 14.1.4)

(Existing license agreements that one or more of the Patents is subject to)

Party	Subject Matter	Effective Date

Exhibit C

Prior Actions (Section 14.1.6)

(Prior actions or proceedings that one or more of the Patents was or is the subject of)

Party	Reference No. &Subject Matter	Effective Date

Exhibit D

Syndicate Formation Notice (Section 3)

To:

_____

_____

Re: Syndicate Formation Notice according to Patent Purchase Agreement effective _____

Dear _____

Pursuant to Section 2 and 3 of the Agreement, SynPat has initiated and completed a due diligence investigation of the Patents and after finding the Patents suitable for monetization, it has formed a Syndicate. Thus, the Agreement continues in full force and effect, and according to Section 2, all right, title, and interest in and to the Patents, are conveyed, assigned and transferred to SynPat. The execution of no additional document or agreement (including the Confirmatory Patent Assignment Form in Exhibit E) is required in order to effectuate the assignment, as that occurs automatically upon your receipt of this notice.

Best Regards,

Syndicated Patent Acquisition Corporation

Exhibit E (Section 10.1)

Confirmatory Patent Assignment Form

For good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, _____ ("**Assignor**"), with its principal place of business at _____, hereby sells, assigns, transfers and conveys to **Syndicated Patent Acquisitions Corp**. (**"Assignee"**), a corporation with its principal place of business at 706 Cowper St. Suite 200 Palo Alto, CA 94301 U.S.A, its successors, assigns and legal representatives, the entire right, title and interest in and to all:

the patents and patent applications, as set forth in **Schedule A** attached hereto and incorporated herein by this reference (**"Patents"**); and all continuations, divisions, reexaminations, reissues and substitutes thereof, all inventions therein, including without limitation all rights to claim priority on the basis thereof, and any and all applications for patents which are or may hereafter be filed for this invention in any foreign country and all patents which may be granted on these inventions in any foreign country, and all extensions, renewals, and reissues thereof; and including without limitation, all rights to sue for past, present and future infringement, including the right to collect and receive any damages, royalties, or settlements for such infringements, all rights to sue for injunctive or other equitable relief, and any and all causes of action relating to any of the inventions or discoveries thereof;

Assignor hereby covenants that it has full right to convey the entire interest herein assigned, and that it has not executed, and shall not execute, any agreement in conflict with this Assignment; it shall communicate to Assignee any and all facts known to it respecting said patents, and testify in any legal proceeding, sign all lawful papers, execute and deliver all papers and take any actions that may be necessary or desirable to perfect the title to any aforementioned patents and inventions, execute all divisional, continuation, reexamination, reissue and substitute applications, and make all rightful oaths and generally do everything possible to aid Assignee to obtain and enforce proper patent protection for said inventions in all countries.

IN TESTIMONY WHEREOF, Assignor has caused this Assignment to be duly executed in its name and behalf by affixing its hand and seal thereto by its designated officer, director, or agent, whose name and title appear below.

Signature:_____ Name:_____ Date:_____

STATE OF _____)

COUNTY OF _____)

On _____ , before me _____, Notary Public, personally appeared _____ personally known to me (or proved to me on the basis of satisfactory evidence) to be the person whose name is subscribed to the within instrument and acknowledged to me that he executed the same in his authorized capacity, and that by his signature on the instrument the person, or the entity upon behalf of which the person acted, executed the instrument.

WITNESS my hand and official seal.

Signature of Notary:_____